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KATIE PALACIOS

UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

AGENT A. DERRICK #6910, Parole Agent, California Department of Corrections and Rehabilitation, in his individual capacity; KATIE PALACIOS, Director, HOPE Program (Stockton, California), in her individual capacity; AGENT G. NOGUCHI #7284, Supervising Parole Agent, California Department of Corrections and Rehabilitation, in his individual capacity,

Defendants.

Case No.: 2:26-CV00004-DJC-JDP(PS)

DEFENDANT KATIE PALACIOS' NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF

Date: **May 28, 2026**
Time: **10:00 a.m.**
Courtroom: **9, 13th Floor**
Judge: **The Honorable Jeremy D. Peterson [via Zoom]**

Complaint Filed: January 5, 2026
FAC Filed: January 12, 2026
Trial Date: TBD

TO PLANTIFF, BRENDAN NGEHSI NEWANFORBI, IN PRO SE, ALL PARTIES AND THEIR COUNSEL OF RECORD, AND TO THE HONORABLE COURT:

PLEASE TAKE NOTICE that Defendant KATIE PALACIOS' Motion to Dismiss Plaintiff's First Amended Complaint is set for hearing on Thursday, May 28, 2026 at 10:00 a.m. before the Honorable Jeremy D. Peterson, via Zoom. The main telephone number of the Court is

(916) 930-4000, or you can access the Court's website at http://www.caed.uscourts.gov.

PLEASE TAKE FURTHER NOTICE that under Local Rule 230(b), this motion is submitted for oral argument unless otherwise ordered by the Court. Failure to file an opposition or to file a statement of non-opposition may be deemed a waiver of any opposition to the granting of the motion. Under Local Rule 230(b), Plaintiff has fourteen-days from the date of filing to file and serve an opposition or statement of non-opposition to Defendant's motion to dismiss.

This motion is based on this notice of motion and motion; the supporting memorandum of points and authorities; the pleadings, records, and files in this action; and such other matters as may properly come before the Court.

Dated: April 6, 2026

Respectfully submitted,

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence

CYNTHIA G. LAWRENCE
BRYAN L. MALONE
Attorneys for Defendant,
KATIE PALACIOS

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Plaintiff Brendan Newanforbi, appearing pro se, alleges that Defendant Katie Palacios retaliated against him because of his protected speech under the First Amendment, and violated his rights to equal protection and substantive due process under the Fourteenth Amendment.

For the reasons stated below and herein, Defendant moves to dismiss Plaintiff's First Amended Complaint (ECF No. 5)[1]. Plaintiff also fails to state a viable First Amendment claim against Defendant by failing to plead what his protected speech was, whether Defendant Palacios personally participated in any constitutional deprivation, and that this Defendant is a state actor. Plaintiff's substantive due process claim is duplicative of his First Amendment claim and must be dismissed.

II. STATEMENT OF FACTS

Notably lacking from Plaintiff's pleading are any specific examples of speech which are protected and which were actually deprived by this moving Defendant.

Plaintiff is a Black (African-American) parolee who is required to attend the HOPE Program in Stockton, California as a mandatory condition of his parole by the California Department of Corrections and Rehabilitation. (First Amended Complaint, ECF No. 5 at ⁋⁋1, 8, 12) Defendant Palacios is the Director of the HOPE Program. (ECF No. 5 at ¶10)

Plaintiff claims in 2024 he engaged in unspecified verbal expression and complaints regarding disrespectful treatment by unspecified program staff and others which was constitutionally protected. (ECF No. 5 at ¶13); that despite five years in the HOPE Program and timely completing his homework, it was routinely lost by program staff and he was subjected to group resets due to repeated clinician turnover (ECF No. 5 at ¶14); and that Defendant Palacios and other unspecified HOPE personnel characterized his speech "disruptive." (ECF No. 5 at5 §15)

In March 2025, Plaintiff received an offer of employment from a FedEx Office for a Retail Customer Service Associate position. (ECF No. 5 at ¶ 20) The position required mandatory training in Modesto, California beginning on or about April 1, 2025. (ECF No. 5 at ¶ 21) Plaintiff

[1] All Docket references refer to documents filed and assigned in the Court's CM/ECF system.

requested a temporary accommodation from mandatory HOPE attendance to complete the training. (ECF No. 5 at ¶ 22) HOPE attendance rules required Plaintiff to arrive by 6:00 p.m., with late arrival constituting a parole violation, though a standard 10-minute grace period existed. (ECF NO. 5 at ¶¶ 22–23) During March and April 2025, Plaintiff legitimately used this grace period to commute from Modesto to the HOPE Program in Stockton. (ECF No. 5 at ¶ 23)

Plaintiff alleges that Defendants Derrick and Palacios conferred and jointly decided to revoke Plaintiff's grace period and to deny his request for accommodation. (ECF No. 5 at ¶¶24-25) This forced Plaintiff to choose between his employment and strict compliance with parole conditions. (*Id.*) Plaintiff alleges this action contravened the rehabilitative purpose of parole and failed to advance a legitimate penological goal. (ECF No. 5 at ¶ 27)

At a Case Conference/Containment Team Meeting ("CTM") held in mid-2025, Defendant Palacios characterized Plaintiff as a "ringleader" whose unspecified speech encouraged others to speak. (ECF No. 5 at ¶29)

In November 2025, a Discharge Review Report prepared based on input from Defendants Derrick and Palacios characterized Plaintiff as "disruptive" and a "ringleader" and recommended continued retention on parole. (ECF No. 5 at ¶¶35-36) Plaintiff was subsequently subjected to twice-monthly parole visits (ECF No. 5 at ¶38) and, following the containment meeting, experienced a further chilling of his unspecified protected speech within the HOPE Program. (ECF No. 5 at ¶44) Defendant Palacios assumed responsibility for facilitating Plaintiff's group discussions when his assigned clinician abruptly resigned. (*Id*) Plaintiff began engaging in unspecified protected activity less and less during HOPE group sessions out of fear that his speech would be labeled "disruptive" and lead to additional adverse consequences on parole. (ECF No. 5 at ¶45) Defendant Palacios repeatedly remarked during group sessions that Plaintiff was "doing better" and she had been "putting in a good word" for him with his parole agent when asked for status updates. (ECF No. 5 at ¶46) Plaintiff contends his self-censorship was a deliberate effort to avoid retaliation, escalation of supervision, or punitive consequences. (ECF No. 5 at ¶48)

Plaintiff claims Defendants Derrick and Palacios, along with unspecified HOPE Program staff, routinely met to discuss Plaintiff and other parolees. (ECF No. 5 at ¶49). Plaintiff further

alleges that the Defendants engaged in intentional race-based disparate treatment, subjecting Black parolees (including Plaintiff) to hostile and escalatory enforcement than similarly-situated white parolees without legitimate penological justification. (ECF No. 5 at ¶¶ 52–60)

II. THIS MOTION IS TIMELY

Defendant Palacios was served with Plaintiff's First Amended Complaint pursuant to Notice and Acknowledgment of Receipt on March 6, 2026. (ECF No. 20). Pursuant to stipulation submitted to the Court, it was agreed and approved that Defendant Palacios will have until April 6, 2026 to file her response to the First Amended Complaint. (ECF Nos. 22 and 23).

Defendant's Motion to Dismiss Plaintiff's First Amended Complaint is timely submitted herein on April 6, 2026.

III. AUTHORITY

Federal Rule of Civil Procedure 8(a) requires a plaintiff to plead each claim with sufficient specificity to "give the defendant fair notice of what the . . . claim is and the grounds upon which it rests." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555, 127 S. Ct. 1955, 167 L. Ed. 2d 929 (2007) (internal quotations omitted). A complaint which falls short of the Rule 8(a) standard may be dismissed if it fails to state a claim upon which relief can be granted. Fed. R. Civ. P. 12(b)(6). A dismissal under Rule 12(b)(6) for failure to state a claim can be based on either (1) the lack of a cognizable legal theory or (2) insufficient facts to support a cognizable legal claim. *Balistreri v. Pacifica Police Dep't*, 901 F.2d 696, 699 (9th Cir. 1990).

Pleadings filed by a plaintiff proceeding pro se, as here, must be construed liberally. *Resnick v. Hayes*, 213 F.3d 443, 447 (9th Cir. 2000). In doing so, the court "need not give a plaintiff the benefit of every conceivable doubt" but "is required only to draw every reasonable or warranted factual inference in the plaintiff's favor." *McKinney v. De Bord*, 507 F.2d 501, 504 (9th Cir. 1974). The court "should use common sense in interpreting the frequently diffuse pleadings of pro se complainants." *Id*. A pro se complaint should not be dismissed unless the court finds it "beyond doubt that the plaintiff can prove no set of facts in support of his claim which would entitle him to relief." *Haines v. Kerner*, 404 U.S. 519, 521 (1972).

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IV. ARGUMENT

Plaintiff's First Amended Complaint (ECF No. 5) fails to state a viable claim against moving Defendant Palacios.

A. PLAINTIFF FAILS TO STATE A VIABLE SECTION 1983 CLAIM.

While Plaintiff admits that Defendant Palacios is a private party sued in her individual capacity, he further asserts that she qualifies as a state actor acting under color of law pursuant to 42 U.S.C. §1983. (ECF No. 5 at ¶10). His allegations and analyses are fundamentally flawed.

The First Amendment provides that "Congress shall make no law . . . abridging the freedom of Speech." U.S. Const. amend. I. A fundamental precept of the First Amendment establishes "that the Free Speech Clause prohibits only governmental abridgment of speech." *Manhattan Cmty. Access Corp. v. Halleck*, 139 S. Ct. 1921, 1928 (2019). The First Amendment does not prohibit a private entity's abridgment of speech. *Denver Area Educ. Telecommunications Consortium, Inc. v. F.C.C.*, 518 U.S. 727, 737 (1996). This separation of constitutional enforcement between state actors and private individuals actually "protects a robust sphere of individual liberty." *Manhattan Cmty. Access Corp.*, 139 S. Ct. at 1928. Courts across the country have found social media companies are private, not state actors. *See Young v. Facebook, Inc.*, No. 5:10-CV-03579-JF/PVT, 2010 WL 4169304, at *3 (N.D. Cal. Oct. 25, 2010); *Shulman v. Facebook.com*, No. CV 17-764 (JMV), 2017 WL 5129885, at *4 (D.N.J. Nov. 6, 2017).

Here, Plaintiff has not put forth any meaningful facts or case law to suggest Defendant Palacios is a state actor subject to the First Amendment. A claim under §1983 "requires a plaintiff to show both the existence of a federally-protected right and the deprivation of that right by a person acting under color of state law." (*Wittner v. Banner Health*, 720 F.3d 770, 773 (10th Cir.2013).) The "under color of law" requirement in § 1983 cases is identical to the state action requirement of the Fourteenth Amendment. (*Lugar v. Edmondson* Oil Co., 457 U.S. 922, 937 (1982).) For a deprivation of a right to be committed under color of law, it "must be caused by the exercise of some right or privilege created by the State or by a rule of conduct imposed by the state or by a person for whom the State is responsible," and "the party charged with the deprivation must be a person who may fairly be said to be a state actor." (*Id*. at 937.)

Normally, private parties are not acting under color of state law and, as such, no cause of action under Section 1983 is available. (*Price v. Hawaii*, 707-08 (9th Cir. 1991). "We start with the presumption that conduct by private actors is not state action." (*Florer v. Congregation Pidyon Shevuyim*, N.A. (9th Cir. 2011) 639 F.3d 916, 922) Non-governmental corporations are generally considered not acting under color of state law. (*Lugar v. Edmondson Oil Co*., 457 U.S. 922, 937 (1982).)

Further, the conditions of Plaintiff's parole imposed by the other named defendants appear lawful. California Penal Code §3053 provides that "The Board of Parole Hearings shall have the power to establish and enforce rules and regulations under which inmates committed to state prisons may be allowed to go upon parole outside the prison building and enclosures when eligible for parole, and "[t]he Board of Prison Terms upon granting any parole to any prisoner may also impose on the parole any conditions that it may deem proper." *Id.* Parolees may also be subject to special conditions, which include but are not limited to psychiatric treatment program, and "[a]ny other condition deemed necessary by the Board [of Parole Hearings] or the Department [of Corrections and Rehabilitation] due to unusual circumstances." Cal. Code Regs. Tit. 15, §2513; *Decker Coal Co. v. Pehringer*, 8 F.4th 1123, 1133 (9th Cir. 2021). There is a "general presumption of constitutionality of statutes." *Decker,* 8 F.4th at 1133.

Notwithstanding the above, the Ninth Circuit has articulated four tests for determining whether a private person acted under color of law: (1) the public function test, (2) the joint action test, (3) the government nexus test, and (4) the government coercion or compulsion test. (*Franklin v. Fox*, 312 F.3d 423, 445 (9th Cir. 2002); *Lopez v. Dept. of Health Services*, 939 F.2d 881, 883 (9th Cir. 1991) (citing cases and describing the "joint action test" and the "governmental nexus test."). Plaintiff's allegations fail to sufficiently meet any of these tests.

First, under the public function test, a private party's conduct constitutes state action when the private party exercises powers that are '"traditionally the exclusive prerogative of the State."' (*Caviness v. Horizon Community Learning Center, Inc.* (9th Cir. 2010) 590 F.3d 806, 813.) "[W]hen private individuals or groups are endowed by the State with powers or functions governmental in nature, they become agencies or instrumentalities of the State and subject to its

constitutional limitations." (*Florer*, supra, 639 F.3d at p. 924.) "[T]he fact that the government has granted a private entity certain powers and privileges under the law," however, "is insufficient to make the private entity's conduct state action." (*Sturm v. El Camino Hospital* (N.D.Cal., Feb. 26, 2010, No. C-09-02324 RMW) 2010 WL 725563, p. 3.) Instead, the "challenged 'function at issue must be both traditionally and exclusively governmental.'" (*Caviness*, supra, 590 F.3d at p. 814.)

Here, Plaintiff has not and cannot plead facts sufficient to raise a reasonable inference that the treatment of offenders are functions within the exclusive prerogative of the state. No facts a are stated in the Frist Amended Complaint. Offenders can certainly seek private treatment of their own accord, and the State is not the exclusive entity to provide treatment to offenders.

Second, under the joint action test, "courts examine whether state officials and private parties have acted in concert in effecting a particular deprivation of constitutional rights." (*Franklin*, supra, 312 F.3d at p. 445.) "The test focuses on whether the state has 'so far insinuated itself into a position of interdependence with [the private actor] that [the private actor] must be recognized as a joint participant in the challenged activity.'" (Ibid.; see *Florer*, *supra*, 639 F.3d at p. 926; "A plaintiff may demonstrate joint action by proving the existence of a conspiracy or by showing that the private party was 'a willful participant in joint action with the State or its agents.'" (*Franklin*, at p. 445.)

Here, Plaintiff's First Amended Complaint clearly indicates that Plaintiff's participation in the HOPE Program was a mandatory condition of his parole created by the California Department of Corrections and Rehabilitation, *not* this Defendant. (ECF No. 5 at ¶8) Although Defendant Palacios is the Director of the HOPE Program (ECF No. 5 at ¶10), the Parole Department imposed the requirement to attend treatment upon Plaintiff, and the Hope Program merely provides a place to receive that treatment. In short, Ms. Palacios is *not* a joint actor with the State.

The case *Reinhardt v. Kopcow*, while from the 10th Circuit, is directly on point. Applying a substantially similar set of four tests, the Court found sex offender treatment and therapy providers to be private, and not state, actors. First, sex offender treatment and therapy providers were not traditional and exclusive "functions of the state," as required, under public function test for establishing state action in § 1983 suits. (*Reinhardt v. Kopcow*, 65 F. Supp. 3d 1164, 1173 (D. Colo. 2014).) Second, the Court found the sex offender treatment and therapy providers to be private actors

under the "joint action" test because Plaintiffs plead no facts and provided no evidence that the treatment providers were joint actors with the state in the decision to enact restrictions on the sex offender's access to his family. Rather, the Court opined that the Probation Department imposed the restriction on family contact, and the treatment providers were simply confined by that restriction. (*Id* at 1173.) The Court stated, "Plaintiffs argue that [the treatment providers] 'acted in concert' with the Probation Department 'to restrict [Plaintiff's] liberty and ability to interact with his immediate family members.' However, this argument is not supported by the pleadings, which plainly state that the Probation Department imposed the restriction on family contact, and that this limitation contradicted [the treatment providers] recommendation."(*Id.*)

The two remaining tests to determine whether a private person acted under color of law as articulated by the Ninth Circuit in *Franklin v. Fox*, 312 F.3d 423, 445 (9th Cir. 2002) demonstrate Plaintiff's flawed pleading as well.

The government nexus test asks whether "there is such a close nexus between the State and the challenged action that the seemingly private behavior may be fairly treated as that of the State itself." (*Kirtley v. Rainey*, 326 F.3d 1088, 1095 (9th Cir. 2003); see *Brentwood Acad. v. Tennessee Secondary Sch. Athletic Ass'n*, 531 U.S. 288, 295 (2001).) It is similar to the joint action test in that both tests require that the state is "so far insinuated into a position of interdependence with the [private party] that it was a joint participant in the enterprise." (*Jackson v. Metropolitan Edison Co.* (1974) 419 U.S. 345, 357–358; see *Jensen v. Lane County* (9th Cir. 2000) 222 F.3d 570, 574 [referring to a dual "close nexus/joint action test"].)

Finally, under the state compulsion test, the court considers "whether the coercive influence or 'significant encouragement' of the state effectively converts a private action into a government action." (*Kirtley*, *supra*, 326 F.3d at p. 1094.) "The Supreme Court has repeatedly held that 'the mere fact that a business is subject to state regulation does not by itself convert its action into that of the State.'" (*Caviness v. Horizon Cmty. Learning Ctr., Inc.*, 590 F.3d 806, 816 (9th Cir. 2010), quoting *American Mfrs. Mut. Ins. Co. v. Sullivan* (1999) 526 U.S. 40, 52.) Indeed, "[e]ven extensive government regulation of a private business is insufficient to make that business a state actor if the challenged conduct was 'not compelled or even influenced by any state regulation.'" (*Caviness*, at p.

816.) In summary, Plaintiff has filed to set forth sufficient facts that establishes or qualifies Defendant Palacios as a state actor acting under color of state law pursuant to 42 U.S.C. §1983.

B. PLAINTIFF FAILS TO STATE A VIABLE FIRST AMENDMENT RETALIATION CLAIM.

Notwithstanding the above, Plaintiff must establish five elements to state a First Amendment retaliation claim against Defendant: (1) Plaintiff engaged in protected conduct; (2) Defendant took adverse action against Plaintiff; (3) the adverse action was caused by the protected conduct; (4) the adverse action would chill a person of ordinary firmness from engaging in protected conduct; and (5) the action did not reasonably advance a legitimate correctional goal. *Rhodes v. Robinson* 408 F.3d 559, 567-68 (9th Cir. 2005).

At a minimum, Plaintiff's First Amended Complaint fails to set forth sufficient facts establishing the required elements:

1. Plaintiff Does Not Plausibly Plead He Engaged in Protected Conduct

Plaintiff must plead that his verbal disputes were protected speech which Defendant Palacios (and HOPE Program staff) retaliated against him. *Entler v. Gregoire* 872 F.3d 1031, 1039-40 (9th Cir.2017) (threats to sue or file grievances are protected First Amendment conduct). Purely disruptive or insubordinate conduct is *not* protected. *Lockett v. Suardini* 526 F.3d 866, 874 (6th Cir. 2008) (inmate's insolent remarks to prison hearing officer unprotected) (Emphasis added); *Loftis v. Montes*, 2019 WL 3806388, at *3 (C.D. Cal. June 25, 2019), report and recommendation adopted, 2019 WL 3802187 (C.D. Cal. Aug. 13, 2019).

Here, Plaintiff alleges his First Amendment retaliation claim is based on "expressing complaints, objections, and concerns regarding his treatment in a mandatory parole program and by state actors." (ECF No. 5 at ⁋ 62.) Although purportedly characterized as "disruptive" (ECF No. 5 at ¶15), there is no description or identification of specific speech by Plaintiff, no description or identification of specific speech retaliated against or deprived by Defendant, nor any plausible argument that Plaintiff's activity was protected in the first place.

2. Plaintiff Fails to Plead Causation.

Retaliation requires facts plausibly showing that a defendant acted adversely against a

plaintiff because of the plaintiff's protected speech. *Rhodes*, 408 F.3d at 567-68.

Here, Plaintiff's First Amended Complaint fails to set forth facts and allege that adverse action was caused by his protected conduct. Indeed, there are no facts that any action or conduct by Palacios was specifically due to any protected speech. (ECF No. 5)

C. PLAINTIFF FAILS TO STATE A VIABLE SUBSTANTIVE DUE PROCESS CLAIM.

If a particular amendment provides an explicit textual source of constitutional protection against a particular sort of government behavior, that Amendment, not the more generalized notion of substantive due process must be the guide for analyzing these claims. *Albright v. Oliver* 510 U.S. 266 (1994); *Graham v. Connor* 490 U.S. 386, 395 (1989). This bar applies even when the plaintiff characterizes the same conduct through a different doctrinal lens. *Brittain v. Hansen* 451 F.3d 982, 990-91 (9th Cir. 2006).

Plaintiff's allegations underlying his Fourteenth Amendment claims are the same as the ones underlying his First Amendment claims. (ECF No. 5 at ¶¶ 75-82.) Plaintiff alleges that Defendant violated his substantive due process rights by denying his employment accommodation, revoking his 10-minute grace periods, raising the frequency of supervision, imposing new parole conditions, and drafting a negative Discharge Review Report based on Plaintiff's "disruptive" conduct. (Id. at ¶¶ 20-24, 33-38, 78.) These same actions were purportedly taken in retaliation to Plaintiff's allegedly protected speech. (Id. at ¶¶ 3, 17-19, 29.) Plaintiff's substantive due process allegations, therefore, are duplicative of his First Amendment claims and should be dismissed with prejudice.

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V. CONCLUSION

Defendant KATIE PALACIOS respectfully requests that the Court grant her Motion to Dismiss First Amended Complaint (ECF No. 5) for failure to state a claim.

Dated: April 6, 2026

Respectfully submitted,

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence

CYNTHIA G. LAWRENCE
BRYAN L. MALONE
Attorneys for Defendant,
KATIE PALACIOS

CERTIFICATE OF SERVICE

Case Name: Brendan Ngehsi Newanforbi v. Agent A. Derrick, et al.
Case No. 2:26-CV-00004-DJC-JDP (PS)

I hereby certify that on April 6, 2026, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

DEFENDANT KATIE PALACIOS' NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF

Participants in the case who are registered CM/ECF users will be served by the CM/ECF system.

I am employed with Sims, Lawrence & Broghammer, which is the office of a member of the California State Bar at whose member's direction this service is made.

I am 18 years of age or older and not a party to this matter. I am familiar with the business practice at Sims, Lawrence & Broghammer for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at Sims, Lawrence & Broghammer is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

I further certify that some of the participants in the case are not registered CM/ECF users. On October 29, 2025, I have caused to be mailed in Sims, Lawrence & Brogrammer's internal mail system, the foregoing document(s) by First-Class Mail, postage prepaid, or have dispatched it to a third party commercial carrier for delivery within three (3) calendar days to the following non-CM/ECF participants:

Brendan Ngehsi Newanforbi
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
(2092) 801-4442
Bnn.cdl@gmail.com

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on April 6, 2026, at Roseville, California.

Kim Schmitt
Declarant

Kim Schmitt